

Case :- WRIT - C No. - 35554 of 2022

Petitioner :- Smt. Anuradha Chauhan

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Devesh Kumar Sharma

Counsel for Respondent :- C.S.C.,Sunil Kumar Dubey

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vipin Chandra Dixit,J.

The petitioner herein claims that she is running a paying guest accommodation in the premises in question wherein five rooms are existing.

It is contended that as per the Government Order dated 8.08.1994 appended at page-'16' of the paper book, the paying guest accommodations are treated as non commercial accommodation. The petitioner has regularly paid the bills of electricity, however, to utter surprise of the petitioner's bill dated 28.10.2021 has been served upon the petitioner for Rs.4,18,323/- without giving any information or intimation to the petitioner about computation of the said bill.

A perusal of the bill appended at page-'45' of the paper book indicates that it is a provisional bill passed on a checking report in accordance with the provisions of Clause 8.1/8.2 of the Electricity Supply Code, 2005.

In the said situation, it seems that the petitioner has not given correct picture before this Court, moreover, the petitioner is at liberty to file objections to the provisional bill issued on 28.10.2021. It seems that no objection has been filed and as such the demand notice dated 04.08.2022 has been served upon the petitioner.

The remedy before the petitioner is to file appeal under Section 127 of the Electricity Act, 2003.

It is provided that in case such an appeal is filed within two weeks along with the copy of this order, the same shall be decided without raising any objection as to the limitation in filing thereof.

The requirement of predeposit, however, is to be adhered to by the learned counsel for the petitioner.

The writ petition is **disposed of**.

Order Date :- 9.12.2022/Harshita